

In the Supreme Court of the United States

DONALD J. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL.

v.

GWYNNE A. WILCOX

SCOTT BESENT, SECRETARY OF THE TREASURY, ET AL., APPLICANTS

v.

CATHY A. HARRIS

**APPLICATION TO STAY THE JUDGMENTS
OF THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA
AND REQUEST FOR ADMINISTRATIVE STAY**

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PARTIES TO THE PROCEEDING

Applicants (defendants-appellants below) in *Trump v. Wilcox* are Donald J. Trump, President of the United States, and Marvin E. Kaplan, Chairman, National Labor Relations Board.

Respondent (plaintiff-appellee below) in *Trump v. Wilcox* is Gwynne A. Wilcox.

Applicants (defendants appellants below) in *Bessent v. Harris* are Scott Bessent, Secretary of the Treasury; Sergio Gor, Director, White House Presidential Personnel Office; Henry J. Kerner, Acting Chairman, Merit Systems Protection Board; Trent Morse, Deputy Assistant to the President and Deputy Director, White House Presidential Personnel Office; Donald J. Trump, President of the United States; and Russell Vought, Director, Office of Management and Budget.

Respondent (plaintiff-appellee below) in *Bessent v. Harris* is Cathy A. Harris.

RELATED PROCEEDINGS

United States District Court (D.D.C.):

Wilcox v. Trump, No. 25-cv-334 (Mar. 6, 2025)

Harris v. Bessent, No. 25-cv-412 (Mar. 4, 2025)

United States Court of Appeals (D.C. Cir.):

Wilcox v. Trump, No. 25-5057 (Apr. 7, 2025)

Harris v. Bessent, Nos. 25-5037 and 25-5055 (Apr. 7, 2025)

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No. 24A

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Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants Donald J. Trump, President of the United States, et al., and Scott Bessent, Secretary of the Treasury, et al.—respectfully requests that this Court stay the judgments issued by the U.S. District Court for the District of Columbia (App., *infra*, 177a-178a; *id.* at 216a-217a) pending appeal to the U.S. Court of Appeals for the D.C. Circuit and any further proceedings in this Court. The Solicitor General also respectfully requests an administrative stay of those judgments while this Court considers this application.

This case raises a constitutional question of profound importance: whether the

President can supervise and control agency heads who exercise vast executive power on the President’s behalf, or whether Congress may insulate those agency heads from presidential control by preventing the President from removing them at will. Here, soon after taking office, President Trump removed respondents from the National Labor Relations Board (NLRB) and the Merit Systems Protection Board (MSPB). Relying on statutes that purport to insulate members of those agencies from removal, the district court countermanded the President’s decisions and ordered respondents restored to their offices. Although a panel of the D.C. Circuit stayed those orders, the en banc court vacated the stay, allowing respondents to continue exercising the President’s executive power over the President’s express objection.

This situation is untenable. “Under our Constitution, the ‘executive Power’—all of it—is ‘vested in a President,’ who must ‘take Care that the Laws be faithfully executed.’” *Seila Law LLC v. CFPB*, 591 U.S. 197, 203 (2020). “The President’s power to remove—and thus supervise—those who wield executive power on his behalf follows from the text of Article II, was settled by the First Congress, and was confirmed in the landmark decision *Myers v. United States*, 272 U.S. 52 (1926).” *Ibid.* This Court has “recognized only two exceptions to the President’s unrestricted removal power,” and it has declined to “extend these precedents to a new configuration.” *Ibid.*

This “unrestricted removal power,” *Seila Law*, 591 U.S. at 203, lies at the heart of Article II. The President’s “power to remove—and thus supervise—those who wield executive power on his behalf,” stands among his “core constitutional powers.” *Trump v. United States*, 603 U.S. 593, 606, 608 (2024) (quoting *Seila Law*, 591 U.S. at 204). It is “conclusive and preclusive,” and thus untouchable by Congress. *Id.* at 607 (quoting *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579, 638 (1952) (Jackson, J., concurring)).

Humphrey's Executor v. United States, 295 U.S. 602 (1935), does not dictate a contrary result as to members of the MSPB and NLRB. That case recognized a narrow exception to the President's removal power that, properly construed, extends only to "multimember expert agencies *that do not wield substantial executive power.*" *Seila Law*, 591 U.S. at 218 (emphasis added). The NLRB and MSPB do wield substantial executive power in implementing and enforcing federal labor and civil-service laws. The lower courts protested that they were bound to follow *Humphrey's Executor* until it is overruled, but they were also bound to follow *Seila Law*'s more recent, definitive exposition of *Humphrey's Executor*. In reading *Humphrey's Executor* more broadly, the en banc court and district court ignored this Court's admonitions that *Humphrey's Executor* "'represent[s] what up to now ha[s] been the outermost constitutional limi[t] of permissible congressional restrictions on the President's removal power'" over principal officers, and that it should not be "elevate[d] * * * into a freestanding invitation for Congress to impose additional restrictions." *Id.* at 218, 228. Indeed, the district court frankly acknowledged that its reading of Article II was "*Contra Seila L.*" App., *infra*, 168a n.19.

Further, the district court's orders violate Article II on an independent and equally troubling basis. Federal courts lack any constitutional, statutory, or equitable authority to order the reinstatement of agency heads whom the President has removed and to force the President to rely on principal officers whom the President believes should not be exercising any executive power. Exercising non-existent equitable authority to saddle the President with already-removed principal officers "deeply wounds the President" in his exercise of the executive power. *Morrison v. Olson*, 487 U.S. 654, 713 (1988) (Scalia, J., dissenting).

Such reinstatement orders find no support in our jurisprudence. Executive

officers have traditionally challenged their removal by suing for back pay, not by seeking reinstatement—as *Humphrey’s Executor* itself illustrates. Until this Administration, no court had ever ordered the reinstatement of a concededly executive officer removed by the President. See *Bessent v. Dellinger*, 145 S. Ct. 515, 517 (2025) (Gorsuch, J., dissenting). Indeed, this Court has squarely held that a “court of equity” has no power to “restrain an executive officer from making a wrongful removal of a subordinate appointee.” *White v. Berry*, 171 U.S. 366, 377 (1898) (citation omitted). The en banc court and district court thus inexplicably hewed to an overbroad reading of *Humphrey’s Executor* that this Court has jettisoned, while ignoring the remedial aspect of *Humphrey’s Executor* that should have guided their decisions.

As these cases demonstrate, allowing district courts to reinstall agency heads in the Executive Branch against the President’s will causes grave and irreparable harm to the President and to our Constitution’s system of separated powers. In firing respondent Gwynne Wilcox from the NLRB, the President explained that Wilcox had not “been operating in a manner consistent with the [Administration’s] objectives,” that she had issued decisions that “have vastly exceeded” the NLRB’s authority, that he lacked confidence that she could “fairly evaluate matters” before the NLRB or that she would “faithfully execute” the statute. *Wilcox* Compl. Ex. A, at 2-3. Likewise, after the President fired respondent Cathy Harris from the MSPB, Harris obtained reinstatement from a district court and then overturned the Executive Branch’s firing of thousands of other federal employees, disrupting the President’s efforts to reform the federal workforce. The President should not be forced to delegate his executive power to agency heads who are demonstrably at odds with the Administration’s policy objectives for a single day—much less for the months that it would likely take for the courts to resolve this litigation.

This Court should stay the district court’s judgments. Given the urgency and importance of these issues, the government also respectfully requests that the Court treat this application as a petition for a writ of certiorari before judgment and promptly settle the questions presented. The Court should also grant an administrative stay pending its consideration of this application.

STATEMENT

A. *Wilcox*

1. Congress established the NLRB in the National Labor Relations Act of 1935 (NLRA), ch. 372, 49 Stat. 449. The NLRB consists of five members appointed by the President with the advice and consent of the Senate. See 29 U.S.C. 153(a). Members serve five-year terms and, under the Act, “may be removed by the President, upon notice and hearing, for neglect of duty or malfeasance in office, but for no other cause.” *Ibid.* The President “designate[s] one member to serve as Chairman.” *Ibid.*

The NLRB has broad power to execute the Act’s provisions. For instance, the NLRB’s General Counsel brings, and the NLRB adjudicates, actions claiming that employers or unions have engaged in unfair labor practices. See 29 U.S.C. 153(d), 160. The NLRB may award remedies such as “back pay,” “reinstatement,” and other relief that “will effectuate the policies” of the statute. 29 U.S.C. 160(c). The NLRB also has the power to issue “rules and regulations” to carry out the Act. 29 U.S.C. 156. The NLRB may authorize its General Counsel to file petitions in courts of appeals to enforce its orders, see 29 U.S.C. 160(e), and suits in district court to enjoin unfair labor practices, see 29 U.S.C. 160(j). Its factual findings are “conclusive” “if supported by substantial evidence.” 29 U.S.C. 160(e).

2. In 2021, President Biden, with the advice and consent of the Senate, appointed respondent Gwynne Wilcox to the NLRB. See *Wilcox* Compl. ¶ 12. In 2023,

President Biden appointed Wilcox to a second term. See App., *infra*, 148a.

On January 27, 2025, a week after taking office, President Trump removed Wilcox as an NLRB member. See App., *infra*, 148a. The Deputy Director of the White House Office of Presidential Personnel emailed Wilcox a letter on behalf of the President. See *Wilcox* Compl. Ex. A. In the letter, the President stated that the NLRB “is not presently fulfilling its responsibility to the American people”; that “[t]he aims and purposes of the Administration with respect to the work on the Board can be carried out most effectively with personnel of my own selection”; and that Wilcox “ha[d] not, in my judgment, been operating in a manner consistent with the objectives of my administration.” *Id.* at 2. The President observed, for example, that Wilcox had “adopted a host of decisions that have improperly cabined employers’ right to speak on the subject of unionization, raising serious First Amendment concerns”; that “[s]everal such decisions were issued on the eve of the new Administration”; and that Wilcox had “also issued decisions that, in my judgment, have vastly exceeded the bounds of the National Labor Relations Act.” *Id.* at 2-3. The President therefore “lack[ed] confidence” that Wilcox “can fairly evaluate matters before [the NLRB] without unduly disfavoring the interests of employers.” *Id.* at 3. The President also “lack[ed] confidence that [Wilcox] will faithfully execute” the statute. *Ibid.*

3. Days later, Wilcox sued the President and the NLRB Chairman in the U.S. District Court for the District of Columbia. See App., *infra*, 149a. She claimed that her removal violated her statutory tenure protection and sought judicial relief restoring her to office. See *ibid.*

On March 6, the district court granted summary judgment to Wilcox, rejecting the government’s argument that NLRB members’ statutory tenure protection violates Article II. App., *infra*, 141a-176a. The court read *Humphrey’s Executor v. United*

States, 295 U.S. 602 (1935), as establishing “the constitutionality of removal protections [for] independent, multimember boards.” App., *infra*, 152a. The court also stated that the Executive Branch is not “strictly unitary”; that the President’s removal power “has never been viewed as unrestricted”; that this Court’s opinion in *Myers v. United States*, 272 U.S. 52 (1926) was “unreliable,” “inapposite,” and “prolix”; and that *Humphrey’s Executor* is “consistent with the text and historical understandings of Article II.” App., *infra*, 162a-164a, 167a, 168a (capitalization omitted).

The district court issued a declaratory judgment that Wilcox’s removal was “unlawful” and “null and void”; that she “remains a member” of the NLRB; and that she “may be removed by the President” only in accordance with the statutory removal restriction. App., *infra*, 177a-178a. The court also issued a permanent injunction prohibiting the NLRB Chairman from “in any way treating [Wilcox] as having been removed from office, from impeding in any way her ability to fulfill her duties as a member of the NLRB, and from denying or obstructing her authority or access to any benefits or resources of her office.” *Id.* at 178a. The court rejected the government’s argument that courts lack the power to issue equitable relief restoring removed executive officials. See *id.* at 173a n.22.

The government appealed to the D.C. Circuit. The district court denied the government’s motion for a stay pending appeal. See App., *infra*, 137a-140a.

B. *Harris*

1. Congress established the MSPB in the Civil Service Reform Act of 1978 (CSRA), Pub. L. No. 95-454, 92 Stat. 1111. The MSPB consists of three members, appointed by the President with the advice and consent of the Senate. See 5 U.S.C. 1201. No more than two members may belong to the same political party. See *ibid.* Members serve seven-year terms and, according to the Act, “may be removed by the

President only for inefficiency, neglect of duty, or malfeasance in office.” 5 U.S.C. 1202(d); see 5 U.S.C. 1202(a). The President, with the advice and consent of the Senate, “from time to time appoint[s]” one of the members as Chairman. 5 U.S.C. 1203(a).

The MSPB adjudicates federal employees’ challenges to adverse employment actions. See 5 U.S.C. 1204(a)(1). It also adjudicates proceedings brought by the Office of Special Counsel, including disciplinary proceedings against federal employees who have allegedly violated federal civil-service laws. See 5 U.S.C. 1215(a). The MSPB may, in addition, review and invalidate rules issued by the Office of Personnel Management, an agency that oversees the federal workforce. See 5 U.S.C. 1204(f). And the MSPB may send its own attorneys to litigate civil actions in the lower federal courts. See 5 U.S.C. 1204(i).

2. In 2022, President Biden, with the advice and consent of the Senate, appointed respondent Cathy Harris to the MSPB. See App., *infra*, 184a. In 2024, President Biden, with the advice and consent of the Senate, designated Harris as Chairman. See *ibid.* On February 10, 2025, the Deputy Director of the White House Office of Presidential Personnel sent Harris an email stating: “On behalf of President Donald J. Trump, I am writing to inform you that your position on the Merit Systems Protection Board is terminated, effective immediately. Thank you for your service.” *Ibid.* (citation omitted).

3. The next day, Harris sued the President, the Secretary of the Treasury, the MSPB’s Acting Chairman, and several White House officials in the U.S. District Court for the District of Columbia. See *Harris* Compl. ¶¶ 8-13. She claimed that her removal violated her statutory tenure protection and sought immediate judicial relief restoring her to office. See App., *infra*, 185a.

On February 18, the district court issued a temporary restraining order rein-

stating Harris. App., *infra*, 218a-238a. Although the statute purports to grant tenure protection only to MSPB members and does not restrict a member's removal from the office of Chairman, see 5 U.S.C. 1202(b), the TRO directed that Harris "shall continue to serve as Chairman of the MSPB," App., *infra*, 239a.

On March 4, the district court vacated the TRO and granted Harris summary judgment—this time restoring Harris only as a member, not as Chairman. App., *infra*, 181a-215a. The court read *Humphrey's Executor* as establishing the validity of tenure protections for "multimember expert agencies that do not wield substantial executive power." *Id.* at 190a (citation omitted). The court stated that the MSPB "does not wield substantial executive power, but rather spends nearly all of its time adjudicating 'inward-facing personnel matters' involving federal employees." *Id.* at 192a (brackets and citation omitted). The court further concluded that "the MSPB's mission and purpose require independence." *Id.* at 193a.

The district court issued a declaratory judgment that Harris "remains a member" of the MSPB and that she "may be removed by the President" only in accordance with the statutory removal provision. App., *infra*, 216a. The court also issued a permanent injunction prohibiting the defendants other than the President from "in any way treating [Harris] as having been removed without cause, denying or obstructing Harris's access to any of the benefits or resources of her office, placing a replacement in Harris's position, or otherwise recognizing any other person as a member of the Merit Systems Protection Board in Harris's position." *Id.* at 217a. The court rejected the government's argument that it lacked the power to issue equitable relief restoring removed executive officials. See *id.* at 196a-214a.

The government appealed to the D.C. Circuit. The district court denied the government's motion for a stay pending appeal. App., *infra*, 179a-180a.

C. D.C. Circuit Proceedings

1. A motions panel of the D.C. Circuit stayed the district court’s judgments in *Wilcox* and *Harris* pending appeal. App., *infra*, 23a-136a. Each member of the panel issued a separate opinion.

Judge Walker voted to stay the district court’s judgments. App., *infra*, 25a-72a. He recognized that *Humphrey’s Executor* “carved out an exception” to the President’s removal power “for agencies that wield ‘no part of the executive power,’” but observed that this Court has since “severely narrowed” that decision and has “forbidden extensions of *Humphrey’s* to any new contexts.” *Id.* at 42a, 54a (citation omitted). He explained that the government was likely to succeed in showing that the NLRB and MSPB fall outside the exception recognized in *Humphrey’s Executor* because both agencies exercise substantial executive power. See *id.* at 55a-67a. He also concluded that “the President suffers irreversible harm each day the district courts’ injunctions remain in effect” and that respondents’ harms “are either incognizable or outweighed by the irreparable harm suffered by the Government.” *Id.* at 67a, 69a.

Judge Henderson, too, voted to stay the district court’s judgments. App., *infra*, 73a-82a. Although Judge Henderson found the government’s likelihood of success on the merits “a somewhat closer call” than did Judge Walker, she ultimately agreed that the President has the power to remove NLRB and MSPB members “because of the substantial executive power that the [agencies] both wield.” *Id.* at 78a. She also concluded that “the government has more than satisfied its burden to show irreparable harm that far outweighs any harm to [respondents] from a stay.” *Ibid.*

Judge Millett dissented. App., *infra*, 83a-136a. In Judge Millett’s view, this Court’s precedents “squarely foreclose” the contention that the President may remove NLRB and MSPB members at will. *Id.* at 89a. Judge Millett also rejected the gov-

ernment’s argument that the district court’s judgments exceeded the courts’ remedial authority, see *id.* at 123a-128a, and concluded that the equities did not support a stay, see *id.* at 128a-136a.

2. By a vote of 7-4, the en banc court of appeals vacated the panel’s stay. App., *infra*, 1a-18a. The court read this Court’s precedent to establish the lawfulness of “removal restrictions for governmental officials on multimember adjudicatory boards.” *Id.* at 2a. By a vote of 6-5, the court also denied the government’s request to stay the vacatur of the panel’s order for seven days to give the government time to seek relief from this Court. See *id.* at 3a.

Chief Judge Srinivasan agreed with the en banc court’s vacatur of the panel’s stay but would have granted the government’s request to stay that vacatur for seven days. App., *infra*, 3a n.*. Judge Henderson issued a dissenting opinion in which she stated that “[o]nly the Supreme Court can decide the dispute”—“the sooner, the better.” *Id.* at 5a. Judge Rao, joined by Judges Henderson, Katsas, and Walker, issued a dissent in which she agreed that the President’s removal of respondents was lawful and argued that the district court’s orders exceeded its remedial authority. *Id.* at 6a-16a. Judge Walker, joined by Judge Henderson, issued a dissenting opinion agreeing with the en banc majority that lower courts are bound by this Court’s precedents, but explaining that he disagreed with the majority’s reading of those precedents. *Id.* at 17a-18a.

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Court may stay a district court’s judgment pending review in the court of appeals and in this Court. See, e.g., *McHenry v. Texas Top Cop Shop, Inc.*, 145 S. Ct. 1 (2025). To obtain such relief, an applicant must show a likelihood of success on the merits, a

reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* Those factors overwhelmingly support a stay here.

A. The Government Is Likely To Succeed On The Merits

The most critical stay factor is usually the applicant’s likelihood of success on the merits, see *Ohio v. EPA*, 603 U.S. 279, 292 (2024), and here, that likelihood is high. First, this Court’s precedents establish that Article II empowers the President to remove, at will, members of multimember boards that wield substantial executive power, such as the NLRB and MSPB. Second, the Court’s precedents also establish that district courts lack the power to issue injunctions or declaratory judgments countermanding the President’s removal of executive officers.

1. Article II empowers the President to remove NLRB and MSPB members at will

a. Article II vests the “executive Power” in the President and directs him to “take Care that the Laws be faithfully executed.” U.S. Const. Art. II, § 1, Cl. 1; *id.* § 3. The executive power “generally includes the ability to supervise and remove the agents who wield executive power in his stead.” *Seila Law LLC v. CFPB*, 591 U.S. 197, 238 (2020). The President’s power to remove executive officers whom he has appointed “follows from the text of Article II,” “was settled by the First Congress,” and has been “confirmed” by this Court many times. *Ibid.*; see *Trump v. United States*, 603 U.S. 593, 621 (2024); *Collins v. Yellen*, 594 U.S. 220, 250-256 (2021); *Seila Law*, 591 U.S. at 213-232; *Free Enterprise Fund v. PCAOB*, 561 U.S. 577, 492-508 (2010); *Myers v. United States*, 272 U.S. 52, 108-176 (1926). The President’s removal power is “conclusive and preclusive,” meaning that it “may not be regulated by Con-

gress or reviewed by the courts.” *Trump*, 603 U.S. at 620-621.

This Court’s precedents have recognized only “two exceptions” to the “general rule” of “unrestricted removal”: one for certain principal officers in *Humphrey’s Executor v. United States*, 295 U.S. 602 (1935), and one for certain “inferior officers with limited duties and no policymaking or administrative authority,” *Seila Law*, 591 U.S. at 215. Those exceptions “represent what up to now have been the outermost constitutional limits of permissible congressional restrictions on the President’s removal power.” *Id.* at 218 (citation omitted). Because everyone agrees that NLRB and MSPB members are principal officers, only the *Humphrey’s Executor* exception is pertinent here.

In *Humphrey’s Executor*, this Court upheld a statute that protected members of the New Deal-era Federal Trade Commission (FTC) from removal except for “inefficiency, neglect of duty, or malfeasance in office.” 295 U.S. at 620 (quoting 15 U.S.C. 41). In reaching that conclusion, the Court explained that Congress’s authority to restrict the removal of an officer “will depend upon the character of the office.” *Id.* at 631. “Because the Court limited its holding ‘to officers of the kind here under consideration,’” “the contours of the *Humphrey’s Executor* exception depend upon the characteristics of the agency before the Court.” *Seila Law*, 591 U.S. at 215 (quoting *Humphrey’s Executor*, 295 U.S. at 632). “Rightly or wrongly, the Court viewed the FTC (as it existed in 1935) as exercising ‘no part of the executive power.’” *Ibid.* (quoting *Humphrey’s Executor*, 295 U.S. at 628). The Court instead regarded the 1935 FTC as a “legislative” or “judicial” “aid”—an entity that acted “as a legislative agency” by “making investigations and reports thereon for the information of Congress,” and “as an agency of the judiciary” by making recommendations to courts “as a master in

chancery.” *Humphrey’s Executor*, 295 U.S. at 628.¹

This Court has therefore read *Humphrey’s Executor* to hold only that Congress could “give for-cause removal protections to a multimember body of experts, balanced along partisan lines, that performed legislative and judicial functions and was said not to exercise any executive power.” *Seila Law*, 591 U.S. at 216. The Court has also explained that the “exceptio[n]” recognized in *Humphrey’s Executor*’s encompasses only “multimember expert agencies that do not wield substantial executive power.” *Id.* at 218; see *id.* at 239 (Thomas, J., concurring in part and dissenting in part) (“[T]he Court takes a step in the right direction by limiting *Humphrey’s Executor* to ‘multimember expert agencies that *do not wield substantial executive power.*’”) (emphasis in original; citation omitted).

To the extent *Humphrey’s Executor* requires upholding tenure protections for agencies such as the NLRB and MSPB, the government intends to ask this Court to hold, after receiving full briefing and argument, that *Humphrey’s Executor* was wrongly decided, is not entitled to *stare decisis* effect, and should be overruled. See *Seila Law*, 591 U.S. at 239-251 (Thomas, J., concurring in part and dissenting in part). For purposes of this application, however, the government’s narrower reading of *Humphrey’s Executor*—and the ensuing conclusion that the agency heads at issue here must be removable at will—follows the holding of *Seila Law* and warrants a stay pending further review.

b. Unlike the 1935 FTC as understood by *Humphrey’s Executor*, the NLRB

¹ This Court has since recognized that *Humphrey’s Executor* may have misapprehended the 1935 FTC’s powers and may have misclassified those powers as quasi-legislative or quasi-judicial rather than executive. See *Seila Law*, 591 U.S. at 216 n.2, 219 n.4. This Court has explained, however, that it will “take the decision on its own terms.” *Id.* at 219 n.4. “[W]hat matters is the set of powers [*Humphrey’s Executor*] considered as the basis for its decision, not any latent powers that the agency may have had not alluded to by the Court.” *Ibid.*

and MSPB do not simply make reports to Congress or recommendations to courts. Each agency instead exercises executive power—indeed, “substantial executive power.” *Seila Law*, 591 U.S. at 218. Then-Judge Kavanaugh accordingly included both the NLRB and the MSPB on a list of “agencies exercising substantial executive authority.” *PHH Corp. v. CFPB*, 881 F.3d 75, 173 (D.C. Cir. 2018) (en banc) (Kavanaugh, J., dissenting). Each agency thus falls outside the *Humphrey’s Executor* exception—and within the “general rule” that the President may remove executive officers at will. *Id.* at 215.

NLRB. The NLRB exercises substantial executive power in executing the NLRA, a major federal statute that regulates private-sector industrial relations. See App., *infra*, 55a-61a (Walker, J., concurring). To begin, the NLRB adjudicates administrative enforcement actions against employers or unions accused of unfair labor practices. See 29 U.S.C. 160(a)-(c). As part of that process, the NLRB may issue subpoenas requiring witnesses to produce evidence and provide testimony. See 29 U.S.C. 161. The statute empowers the NLRB not only to order a violator to “cease and desist” from the practice, but also to award “reinstatement,” “back pay,” or other remedies that “will effectuate the policies” of the statute. 29 U.S.C. 160(c). Further, the NLRB may, and often does, use its adjudications as “vehicles for the formulation of agency policies” that govern the conduct of employers and unions. *NLRB v. Bell Aerospace Co.*, 416 U.S. 267, 294 (1974) (citation omitted). The NLRB also adjudicates proceedings relating to union representation; among other things, it identifies the appropriate bargaining unit, decides whether to hold elections to certify or decertify unions, and administers such elections. See 29 U.S.C. 159. The NLRB’s adjudicatory authority amounts to substantial executive power. See *Seila Law*, 591 U.S. at 219-220 (agency exercised “significant executive power” by “awarding legal and equi-

table relief in administrative adjudications”); *City of Arlington v. FCC*, 569 U.S. 290, 305 n.4 (2013) (agency adjudication is an exercise of executive power).

The NLRB, in addition, has the power to make “rules and regulations” “to carry out the provisions” of the NLRA. 29 U.S.C. 156. The *Wilcox* district court claimed that the NLRB “hardly engages in rulemaking,” App., *infra*, 156a, but that is incorrect. In fact, when firing Wilcox, the President noted that she had “supported a new joint employer rule” that “vastly exceeded the bounds” of the statute and that “courts then invalidated.” *Wilcox* Compl. Ex. A, at 3.² In any event, what matters is the agency’s power, not how often the agency chooses to exercise it. An agency’s power to make rules to carry out a federal statute is substantial executive power. See *Seila Law*, 591 U.S. at 218, 220 (agency exercised “significant executive power” because it could “promulgate binding rules” implementing federal statutes); *Arlington*, 569 U.S. at 305 n.4 (agency rulemaking is an exercise of executive power).

The NLRB, finally, may file suits asking district courts to enjoin unfair labor practices. See 29 U.S.C. 160(j). Although the NLRB General Counsel represents the agency in such judicial proceedings, it is the NLRB members who authorize the initiation of the proceedings. See *ibid.* The power to seek remedies “against private parties on behalf of the United States in federal court” is “a quintessentially executive power not considered in *Humphrey’s Executor*.” *Seila Law*, 591 U.S. at 219; see *Buckley v. Valeo*, 424 U.S. 1, 138 (1976) (per curiam) (“A lawsuit is the ultimate remedy for a breach of the law, and it is to the President * * * that the Constitution entrusts the responsibility to ‘take Care that the Laws be faithfully executed.’”) (quoting U.S.

² See *Standard for Determining Joint Employer Status*, 88 Fed. Reg. 73,946 (Oct. 27, 2023) (rule changing the definition of “joint employer”); *Chamber of Commerce of United States v. NLRB*, 723 F. Supp. 3d 498 (E.D. Tex. 2024) (holding the rule unlawful).

Const. Art. II, § 3).

MSPB. The MSPB, similarly, exercises substantial executive power in executing laws governing the federal workforce. See App., *infra*, 61a-67a (Walker, J., concurring). To start, it exercises extensive adjudicatory power. It reviews federal employees’ appeals from adverse employment actions, such as firings, suspensions, and furloughs, see 5 U.S.C. 1204(a)(1), 7701, and may “order any Federal agency or employee to comply with” its decision, 5 U.S.C. 1204(a)(2). The MSPB also reviews proceedings brought by the Office of Special Counsel, including disciplinary proceedings seeking civil penalties or other sanctions against employees who have allegedly violated civil-service laws. See 5 U.S.C. 1215(a). In conducting adjudications, the MSPB may issue subpoenas directing witnesses to produce evidence or provide testimony. See 5 U.S.C. 1204(b)(2)(A). Those are all substantial executive powers.

The MSPB also may review and invalidate regulations issued by the Office of Personnel Management, see 5 U.S.C. 1204(a)(4), and may send its own attorneys to represent it in the lower federal courts “in any civil action brought in connection with any function carried out by the Board,” 5 U.S.C. 1204(i). The MSPB’s authority to veto another executive agency’s exercise of executive power is itself a significant executive power. Cf. *INS v. Chadha*, 462 U.S. 919, 967-968 (1983) (White, J., dissenting) (discussing the importance of the power to veto agency action). As discussed above, the power to litigate cases in district court on behalf of the federal government is likewise a core executive power. See p. 16, *supra*.

Aggravating the constitutional problem, MSPB members may exercise some of the Board’s powers unilaterally. For instance, a single member may, at the request of the Special Counsel, stay any personnel action for 45 days. See 5 U.S.C. 1214(b). In fact, after being fired by the President and reinstated by the district court, Harris

unilaterally reinstated *thousands* of employees who had been fired by the Department of Agriculture. See p. 34, *infra*. That unilateral authority further distinguishes this case from *Humphrey's Executor*, which involved an agency member whose exercise of power could be “check[ed]” by “fellow members.” *Seila Law*, 591 U.S. at 225.

c. The contrary arguments of the lower courts and respondents lack merit.

First, the district court’s opinion in *Wilcox* contradicts *Seila Law*. Even though *Seila Law* recognized that Article II vests the “entire ‘executive Power’” in “the President alone,” 591 U.S. at 213, the district court stated that “the executive branch [i]s not * * * strictly unitary,” App., *infra*, 163a-164a. Even though *Seila Law* viewed the First Congress’s debates over removal as “contemporaneous and weighty evidence” that “the executive power include[s] a power to oversee executive officers through removal,” 591 U.S. at 214 (citations omitted), the district court concluded that those debates “did not make clear” whether the President’s removal power “derived from the Constitution,” App., *infra*, 163a. Even though *Seila Law* relied on the “exhaustive examination” of the removal power in this Court’s “landmark decision” in *Myers*, 591 U.S. at 204, 214, the district court dismissed *Myers* as “unreliable,” “prolix,” and “inapposite,” App., *infra*, 164a, 167a. Even though *Seila Law* recognized a “general rule” of “unrestricted removal,” 591 U.S. at 215, the district court rejected as “misguided” the argument that Article II grants the President an “‘unrestricted removal power,’” App., *infra*, 162a (citation omitted). And the district court stated that *Humphrey's Executor* could not be “fairly described as an ‘exception’ to the general rule of presidential removal authority,” while acknowledging that such a reading was “*Contra Seila L.*” *Id.* at 168a n.19.

The district court’s analysis in *Harris* is likewise flawed. The court emphasized that the MSPB regulates government activity rather than that “the conduct of

private parties.” App., *infra*, 192a. But an agency’s execution of a federal statute does not somehow become less executive because the statute concerns government employees rather than private individuals. To the contrary, the hiring and firing of employees in the Executive Branch is itself an important aspect of executive power. See *Constitutionality of Proposed Regulations of Joint Committee on Printing*, 8 Op. O.L.C. 42, 49 n.7 (1984) (“Each branch of the Federal Government can conduct the hiring and firing of employees within that branch.”). The court also stated that “the MSPB’s mission and purpose require independence.” App., *infra*, 193a. But this Court has repeatedly rejected arguments made in dissent that Congress may restrict the President’s power to remove an executive officer based on a particular agency’s perceived need for independence. See, e.g., *Collins*, 594 U.S. at 285 (Sotomayor, J., concurring in part and dissenting in part) (“require a degree of independence”); *Seila Law*, 591 U.S. at 264 (Kagan, J., concurring in the judgment with respect to severability and dissenting in part) (“a feature of that agency its creators thought fundamental to its mission—a measure of independence from political pressure”); *Free Enterprise Fund*, 561 U.S. at 531 (Breyer, J., dissenting) (“particular need for independence”). In any event, the MSPB’s statutory precursor, the Civil Service Commission, fulfilled substantially the same mission without tenure protection for almost a century before the creation of the MSPB in 1978. See Act of Jan. 16, 1883, ch. 27, § 1, 22 Stat. 403 (1883).

The en banc D.C. Circuit’s analysis, too, was unsound. The court emphasized that the NLRB and MSPB are “multimember” bodies. App., *infra*, 3a. But *Seila Law* correctly read *Humphrey’s Executor* to address only “multimember expert agencies that do not wield substantial executive power,” not multimember agencies in general. 591 U.S. at 218 (emphasis added). The en banc court also invoked *Wiener v. United*

States, 357 U.S. 349 (1958), a case in which this Court held that members of the War Claims Commission—a temporary body that distributed money from a compensation fund—were not removable at will. App., *infra*, 2a. But the NLRB and MSPB are permanent rather than temporary bodies, and their powers are far more substantial than the War Claims Commission’s—and are plainly executive in nature. Finally, the D.C. Circuit described the NLRB and MSPB as “adjudicatory” entities. App., *infra*, 3a. But that description overlooks the NLRB’s power to make rules, the MSPB’s power to block rules, and both agencies’ power to litigate cases in court. See pp. 16-17, *supra*. Regardless, agency adjudications “are exercises of—indeed, under our constitutional structure they *must be* exercises of—the ‘executive Power.’” *Arlington*, 569 U.S. at 304 n.4 (citation omitted); see *SEC v. Jarkesy*, 603 U.S. 109, 172 n.2 (2024) (Sotomayor, J., dissenting) (“An executive official properly vested with the authority to find facts, apply the law to those facts, and impose the consequences prescribed by law exercises executive power.”); *Freytag v. Commissioner*, 501 U.S. 868, 909 (1991) (Scalia, J., concurring in part and concurring in the judgment) (agency adjudicators “exercise the executive power”).³

2. A court lacks the power to issue equitable relief restoring a removed executive officer

This Court need not resolve broader questions about *Humphrey’s Executor* to

³ Insofar as the 1935 FTC had adjudicatory powers of its own, *Humphrey’s Executor* did not expressly address those powers when upholding the agency’s independence, 295 U.S. at 628, and thus is not precedent sustaining removal protections in that regard, see *Seila Law*, 591 U.S. at 219 n.4. Moreover, the NLRB’s and MSPB’s adjudicatory powers far exceed the 1935 FTC’s. For instance, while the 1935 FTC could order violators only to cease and desist from unlawful activity, see *Humphrey’s Executor*, 295 U.S. at 620, the NLRB may in addition direct violators to take “affirmative action” and may impose monetary remedies such as “back pay,” 29 U.S.C. 160. And while the 1935 FTC had to ask a court to enforce its orders, see *Humphrey’s Executor*, 295 U.S. at 620-621, the MSPB may enforce its own orders, see 5 U.S.C. 1204(a)(2) and (e)(2)(A).

decide this stay application. The Court can also grant the application on the narrow, independent ground that the government is likely to show that the district court’s remedies of reinstating agency heads were unlawful. See App., *infra*, 6a-16a (Rao, J., dissenting); see also *Bessent v. Dellinger*, 145 S. Ct. 515, 516-518 (2025) (Gorsuch, J., dissenting) (voting to stay a district court’s reinstatement of removed Special Counsel Hampton Dellinger on the ground that the court exceeded its remedial authority); *Dellinger v. Bessent*, No. 25-5028, 2025 WL 559669, at *14-*15 (D.C. Cir. Feb. 15, 2025) (Katsas, J., dissenting) (same).

Traditionally, removed executive officers (or their executors) have challenged their removal by seeking back pay—not injunctions or declaratory judgments restoring them to office. See, e.g., *Wiener*, 357 U.S. at 350; *Humphrey’s Executor*, 295 U.S. at 618; *Myers*, 272 U.S. at 106; *Shurtleff v. United States*, 189 U.S. 311, 318 (1903); *Parsons v. United States*, 167 U.S. 324, 327 (1896); *United States v. Perkins*, 116 U.S. 483, 483 (1886). This practice exists for good reasons. Such an injunction or declaration violates Article II, lacks clear statutory authorization, exceeds federal courts’ equitable powers, create serious practical problems, and represents an abuse of discretion.

a. A court violates Article II by ordering the restoration of an executive officer removed by the President. The President’s removal power is “‘conclusive and preclusive,’” which means that it “may not be regulated by Congress *or reviewed by the courts.*” *Trump*, 603 U.S. at 620-621 (emphasis added). Although *Humphrey’s Executor* held that *Congress* may sometimes restrict the removal power by statute, this Court has never held that *courts* may restrain the removal of executive officers through injunctions or declarations. Permitting judicial reinstatement orders would involve a substantial extension of *Humphrey’s Executor*, which involved only back

pay. A back-pay order requires the Executive Branch only to pay a sum of money; a reinstatement order, by contrast, compels the President to entrust his executive power to someone he has fired.

Reinstatement suits also needlessly entangle courts in political disputes, for instance by forcing them to judge whether the equities and the public interest support allowing removals to take effect. See, *e.g.*, App., *infra*, 211a (questioning whether “the public interest would be better served by removing Harris from her position”). “There is no need to magnify the separation-of-powers dilemma posed by the headless Fourth Branch * * * by letting Article III judges—like jackals stealing the lion’s kill—expropriate some of the power that Congress has wrested away from the unitary Executive.” *FCC v. Fox Television Stations, Inc.*, 556 U.S. 502, 525-526 (2009) (Scalia, J.).

History confirms that a court may not force the President to retain the services of an executive officer whom he no longer trusts with executive power. Many members of the First Congress argued against requiring the Senate’s advice and consent for removals precisely because of the risk that such a procedure would require the President to retain someone he had sought to remove. Representative Benson observed that, “[i]f the Senate, upon its meeting, were to acquit the officer, and replace him in his station, the President would then have a man forced on him whom he considered as unfaithful.” *Myers*, 272 U.S. at 124 (citation omitted). Representative Boudinot similarly argued: “But suppose [the Senate] shall decide in favor of the officer, what a situation is the President then in, surrounded by officers with whom, by his situation, he is compelled to act, but in whom he can have no confidence.” *Id.* at 131-132 (citation omitted). And Representative Sedgwick asked rhetorically: “Shall a man under these circumstances be saddled upon the President, who has been appointed for no other purpose than to aid the President in performing certain duties?

Shall he be continued, I ask again, against the will of the President?” *Id.* at 132 (citation omitted). If the Senate may not saddle the President with an unwanted executive officer, a district court certainly may not do so.

“Perhaps the most telling indication of the severe constitutional problem with the” district court’s remedy “is the lack of a historical precedent for [it].” *Free Enterprise Fund*, 561 U.S. at 505 (citation omitted). We are unaware of any previous case, before this Administration took office, in which a court restrained the President’s removal of a principal officer who concededly wields executive power. See *Dellinger*, 145 S. Ct. at 517 (Gorsuch, J., dissenting); *Dellinger*, 2025 WL 559669, at *14 (Katsas, J., dissenting). At most, a district court in 1983 effectively reinstated removed members of the multimember U.S. Commission on Civil Rights because that court believed that the commission functioned as a “legislative agency” whose “only purpose” was “to find facts which [could] subsequently be used as a basis for legislative or executive action”—not to exercise any executive power in its own right. *Barry v. Reagan*, No. 83-cv-3182, 1983 WL 538, at *2 (D.D.C. Nov. 14, 1983). That is no support for the extraordinary and intrusive remedies issued here.

b. The district court’s remedies in these cases also lacked clear statutory authorization. This Court’s precedents require “an express statement by Congress” to authorize judicial remedies that could burden the President’s exercise of Article II powers. *Franklin v. Massachusetts*, 505 U.S. 788, 801 (1992); see *id.* at 800-801 (lack of clear statement subjecting presidential action to judicial review under the Administrative Procedure Act, 5 U.S.C. 701 *et seq.*); *Nixon v. Fitzgerald*, 457 U.S. 731, 748 n.27 (1982) (lack of clear statement subjecting the President to a damages remedy). Relatedly, the Court’s precedents require “very clear and explicit language” before assuming that Congress has sought to burden the President’s removal power.

Shurtleff, 189 U.S. at 315; see *Collins*, 594 U.S. at 248. Respondents, however, have identified no statutory provision that provides—much less clearly—that courts may restore Board members whom the President has removed without cause.

If anything, the relevant statutes imply that courts may not grant such relief. Congress has enacted a Back Pay Act, 5 U.S.C. 5596, under which wrongfully fired officials may seek back pay, but it has never enacted a Reinstatement Act under which principal executive officers may seek restoration to office. The “express provision” of one type of remedy “suggests that Congress intended to preclude others.” *Alexander v. Sandoval*, 532 U.S. 275, 290 (2001). In addition, the NLRA and CSRA both authorize the reinstatement of *employees* whose firings violate the statutes’ substantive provisions. See 5 U.S.C. 7118(a)(7)(C) (authorizing the Federal Labor Relations Authority (FLRA) to require the “reinstatement” of employees as a remedy for unfair labor practices by agencies); 29 U.S.C. 160(c) (authorizing the NLRB to order “reinstatement of employees” as a remedy for unfair labor practices by private employers). Yet neither statute expressly authorizes the reinstatement of a *Board member* whose firing violates the relevant tenure provisions. “That is significant because Congress generally acts intentionally when it uses particular language in one section of a statute but omits it in another.” *DHS v. MacLean*, 574 U.S. 383, 391 (2015).

c. In addition, the injunctions and declaratory judgments issued in these cases exceed the district court’s equitable powers. Federal courts derive their equitable powers from the Judiciary Act of 1789, ch. 20, 1 Stat. 73. See *Grupo Mexicano de Desarrollo S.A. v. Alliance Bond Fund, Inc.*, 527 U.S. 308, 318 (1999). They must exercise those powers in accordance with “traditional principles of equity jurisdiction,” as understood at the Founding. *Id.* at 319 (citation omitted). They may award only those equitable remedies that were “traditionally accorded by courts of equity,”

and they may not “create remedies previously unknown to equity jurisprudence.” *Id.* at 319, 332; accord *Whole Woman’s Health v. Jackson*, 595 U.S. 30, 44 (2021).

One of the most well-established principles of equity jurisprudence is that a court may not enjoin the removal of an executive officer. For instance, in *White v. Berry*, 171 U.S. 366 (1898), this Court reversed an injunction preventing the removal of a federal revenue officer who had been appointed by the Secretary of the Treasury. The Court explained that “a court of equity will not, by injunction, restrain an executive officer from making a wrongful removal of a subordinate appointee, nor restrain the appointment of another.” *Id.* at 377 (citation omitted). Similarly, in *In re Sawyer*, 124 U.S. 200 (1888), the Court held that a federal court lacked the power to enjoin the removal of a municipal officer. It is “well settled,” the Court explained, “that a court of equity has no jurisdiction over the appointment and removal of public officers.” *Id.* at 212. The Court has reaffirmed those principles in many other cases. See *Baker v. Carr*, 369 U.S. 186, 231 (1962); *Walton v. House of Representatives*, 265 U.S. 487, 490 (1924); *Harkrader v. Wadley*, 172 U.S. 148, 165 (1898).

That principle is longstanding and well established. “No English case has been found of a bill for an injunction to restrain [an] appointment or removal.” *Sawyer*, 124 U.S. at 212. State courts have “denied” the “power of a court of equity to restrain * * * removal” in “many well-considered cases.” *Ibid.* One 19th-century scholar wrote that “[n]o principle of the law of injunctions, and perhaps no doctrine of equity jurisprudence, is more definitely fixed or more clearly established than that courts of equity will not interfere by injunction to determine questions concerning the appointment of public officers or their title to office.” 2 James L. High, *Treatise on the Law of Injunctions* § 1312, at 863 (2d ed. 1880). The injunctions in these cases flout that principle.

That principle forecloses declaratory relief as well. A declaratory-judgment suit is “essentially an equitable cause of action.” *Samuels v. Mackell*, 401 U.S. 66, 70 (1971) (citation omitted). Because the Declaratory Judgment Act, 28 U.S.C. 2201-2202, empowers a district court to enforce a declaratory judgment through “[f]urther necessary or proper relief,” 28 U.S.C. 2202, a declaratory judgment can “serve as the basis for a subsequent injunction,” *Samuels*, 401 U.S. at 72. “[E]ven if the declaratory judgment is not used as a basis for actually issuing an injunction, the declaratory relief alone has virtually the same practical impact as a formal injunction would.” *Ibid.* As a result, “the same equitable principles relevant to the propriety of an injunction must be taken into consideration by federal district courts in determining whether to issue a declaratory judgment.” *Id.* at 73. Because “an injunction” to restrain the removal of an executive officer “would be impermissible,” “declaratory relief should * * * be denied as well.” *Ibid.*; see *Macauley v. Waterman S.S. Corp.*, 327 U.S. 540, 545 n.4 (1946) (“The same principles which justified dismissal of the cause insofar as it sought injunction justified denial of the prayer for a declaratory judgment.”); *Great Lakes Dredge & Dock Co. v. Huffman*, 319 U.S. 293, 300 (1943) (The Declaratory Judgment Act “only provided a new form of procedure for the adjudication of rights in conformity” with “established equitable principles.”).

The declaratory judgments here suffer from an additional flaw. Just as a court “has no jurisdiction of a bill to enjoin the President,” *Mississippi v. Johnson*, 4 Wall. 475, 501 (1867), a court also “cannot issue a declaratory judgment against the President,” *Franklin*, 505 U.S. at 827 (Scalia, J., concurring in part and concurring in the judgment). See *Newdow v. Roberts*, 603 F.3d 1002, 1013 (D.C. Cir. 2010) (“With regard to the President, courts do not have jurisdiction to enjoin him * * * and have never submitted the President to declaratory relief.”). Although the district court’s

injunctions here ostensibly run against defendants other than the President, the declaratory judgments, on their face, run against the President himself. The *Wilcox* judgment declares that “the termination of plaintiff Gwynne A. Wilcox”—an action taken by the President—“was unlawful” and “therefore null and void.” App., *infra*, 177a. And the *Wilcox* and *Harris* judgments both declare that respondents “may be removed by *the President*” only for cause. *Id.* at 178a, 216a (emphasis added).

d. Court orders reinstating fired executive officers create serious practical problems as well. To start, reinstatement orders can “lead to the utmost confusion in the management of executive affairs.” *White*, 171 U.S. at 378. Here, for example, respondents were removed by the President, reinstated by the district court, removed again by virtue of the panel’s decision, and reinstated again by the en banc court. Harris’s career trajectory is even more confusing; the district court at first reinstated her as MSPB Chairman but later reinstated her only as a member. See p. 9, *supra*. And respondents’ status may change yet again after the merits panel or this Court issues a final decision. Judicial intervention has thus thrown the NLRB’s and MSPB’s operations into chaos, cast a cloud on the lawfulness of the agencies’ actions, left the President and Senate uncertain about whether and when they may install new officers to succeed respondents, and undermined “the steady administration of the laws” that Article II seeks to secure. *Seila Law*, 591 U.S. at 223 (citation omitted).

Respondents’ remedial theory also encourages hasty judicial decisionmaking. Removed officers may seek temporary restraining orders, preliminary injunctions, and other forms of emergency relief immediately restoring them to office. See, e.g., App., *infra*, 239a-240a (TRO in *Harris*). And courts may feel pressure to rush to final judgment, lest they prolong the uncertainty about the lawfulness of the removal. See, e.g., C.A. 3/18/25 Order (setting expedited briefing schedule under which briefing will

be completed on April 11, 2025); App., *infra*, 177a-178a (district court’s final judgment in *Wilcox* one day after the hearing); *id.* at 216a-217 (same in *Harris*). Such fast-paced litigation deprives courts of the opportunity for careful deliberation and creates a serious risk of judicial error. See *id.* at 239a-240a (TRO wrongly reinstating Harris as Chairman, overlooking a lack of statutory tenure protection for the chairmanship).

Finally, reinstatement suits threaten to “embroi[l] the federal courts” in “power contest[s] nearly at the height of [their] political tension.” *Raines v. Byrd*, 521 U.S. 811, 833 (1997) (Souter, J., concurring in the judgment). By inviting courts to restore officers immediately after the President has fired them, such suits raise the “specter of judicial readiness to enlist on one side of a political tug-of-war” and “risk damaging the public confidence that is vital to the functioning of the Judicial Branch.” *Id.* at 833-834; see *id.* at 827 (majority opinion) (“[I]f the federal courts had entertained an action to adjudicate the constitutionality of the Tenure of Office Act immediately after its passage in 1867, they would have been improperly and unnecessarily plunged into the bitter political battle being waged between the President and Congress.”). A back-pay suit, by contrast, alleviates those concerns by providing “some greater separation in the time between the political resolution and the judicial review.” *Id.* at 834 (Souter, J., concurring in the judgment).

e. At a minimum, the remedies here represent an abuse of discretion. “The decision to grant or deny permanent injunctive relief is an act of equitable discretion.” *eBay Inc. v. MercExchange, L.L.C.*, 547 U.S. 388, 391 (2006). Similarly, because the Declaratory Judgment Act provides that a court “may” grant declaratory relief, 28 U.S.C. 2201(a), courts possess “substantial discretion in deciding whether to declare the rights of litigants,” *Wilton v. Seven Falls Co.*, 515 U.S. 277, 286 (1995).

For the reasons discussed above, injunctive or declaratory relief reinstating a

removed executive officer raises serious constitutional, legal, and practical concerns. Those concerns are especially acute when, as here, this Court has not yet rendered a final decision definitively resolving the lawfulness of the removal. In light of those concerns, the prudent exercise of equitable discretion requires, at a minimum, that the President’s removal decisions remain in effect while litigation remains ongoing. Cf. *Myers*, 272 U.S. at 123-125 (even those members of the First Congress who believed that the removal of executive officers required Senate consent agreed that the President could suspend the officers pending the Senate’s final decision).

f. In both *Wilcox* and *Harris*, the district court reasoned that courts have historically had the power to restore removed officers by issuing writs of quo warranto and mandamus. See App., *infra*, 173a n.22; 212a-214a. But quo warranto and mandamus are *legal* remedies, while injunctions and declarations are *equitable* remedies. The legal remedies come with crucial safeguards that the equitable remedies lack.

First, Congress has authorized quo warranto actions with respect to any “public office of the United States” “within the District of Columbia.” D.C. Code § 16-3501.⁴ But a plaintiff must satisfy stringent requirements before he may bring such an action. A plaintiff must first ask the Attorney General or U.S. Attorney to sue, and those officials have “broad discretion” to refuse to do so. *Andrade v. Lauer*, 729 F.2d 1475, 1498 (D.C. Cir. 1984); see D.C. Code §§ 16-3501 to 16-3502. If those officials refuse, the plaintiff may ask a court for leave to sue, “but the court, too, has broad discretion to deny the writ.” *Andrade*, 729 F.2d at 1498; see D.C. Code § 16-3503. By seeking injunctive and declaratory relief, respondents bypassed those procedural safeguards.

⁴ Although the relevant provision is codified in the D.C. Code, it was enacted by Congress. See District of Columbia Court Reform and Criminal Procedure Act of 1970, Pub. L. No. 91-358, 84 Stat. 561.

Mandamus, too, comes with essential guardrails. “Federal Rule of Civil Procedure 81(b) abolished the writ of mandamus in the district courts, but relief ‘in the nature of mandamus’ may still be obtained through an appropriate action.” *Sanchez-Espinoza v. Reagan*, 770 F.2d 202, 207 n.7 (D.C. Cir. 1985) (Scalia, J.) (quoting 28 U.S.C. 1361). “The principles that governed the former writ now govern attempts to secure similar relief.” *Ibid.* Under those principles, a court may award mandamus only if the applicant has a “clear and indisputable” right to relief. *United States ex rel. Bernardin v. Duell*, 172 U.S. 576, 582 (1899); see *Heckler v. Ringer*, 466 U.S. 602, 616 (1984). For the reasons discussed above, respondents’ right to relief is, at a minimum, unclear. See pp. 12-20, *supra*. In addition, while this Court has approved the use of mandamus to try the title to judicial or local offices, we are unaware of any precedent for using mandamus to reinstate an executive officer removed by the President. See *Ex parte Hennen*, 13 Pet. 230, 256 (1839) (court clerk); *Marbury v. Madison*, 1 Cranch 137, 168 (1803) (justice of the peace in the District of Columbia).

The district court suggested in *Wilcox* that, because of “the merger of law and equity,” the distinction between a writ of mandamus and an injunction no longer “makes [a] difference.” App., *infra*, 173a n.22. But the merger of law and equity means only that, instead of using different forms of action and procedural rules for “actions at law” and “cases in equity,” courts now use “one form of civil action and procedure for both.” Fed. R. Civ. P. 1 advisory committee’s note. The merger “did not alter” the “substantive principles” governing the availability of relief. *Grupo Mexicano*, 527 U.S. at 322 (citation omitted); see *Stainback v. Mo Hock Ke Lock Po*, 336 U.S. 368, 382 n.26 (1949) (“Notwithstanding the fusion of law and equity by the Rules of Civil Procedure, the substantive principles of Courts of Chancery remain unaffected.”). One such substantive principle, as explained above, precludes courts from

enjoining allegedly wrongful removals or ordering reinstatement as a remedy.

The district court in *Harris*, meanwhile, relied principally on this Court’s decision in *Sampson v. Murray*, 415 U.S. 61 (1974). App., *infra*, 201a-202a. But *Sampson* recognized at most that courts may, in some cases, grant “injunctive relief to discharged federal *employees*.” 415 U.S. at 78 (emphasis added); see App., *infra*, 12a n.3 (Rao, J., dissenting). It did not overrule this Court’s precedents precluding injunctive relief for discharged “*officers*.” *White*, 171 U.S. at 376 (emphasis added). And even under *Sampson*, courts must apply a heightened standard before awarding injunctive relief to discharged government employees—a standard that must account for the Executive Branch’s “latitude in the ‘dispatch of its own internal affairs.’” 415 U.S. at 83 (emphasis added). Respondents have not satisfied even the ordinary test for injunctive relief, let alone *Sampson*’s heightened standard.

B. The Other Factors Support Relief From The District Court’s Orders

In deciding whether to grant emergency relief, this Court also considers whether the underlying issues warrant review, whether the applicant likely faces irreparable harm, and, in close cases, the balance of equities. See *Hollingsworth*, 558 U.S. at 190. Those factors overwhelmingly support relief here.

1. The issues raised by these cases warrant this Court’s review

The question whether the President may remove NLRB and MSPB members at will warrants this Court’s review. This Court has often granted certiorari to review the validity of restrictions on the President’s power to remove executive officers. See *Collins*, 594 U.S. at 236; *Seila Law*, 591 U.S. at 209; *Free Enterprise Fund*, 561 U.S. at 488. The Court also has been appropriately receptive to reviewing cases where, as here, “[t]he Executive Branch, at its highest level, is seeking the aid of the courts to protect its constitutional prerogatives.” *Cheney v. United States District Court*, 542

U.S. 367, 385 (2004); see *Clinton v. Jones*, 520 U.S. 681, 689-690 (1997) (“The representations made on behalf of the Executive Branch as to the potential impact of the [decision below] merit our respectful and deliberate consideration.”).

The remedial question, too, warrants this Court’s review. As discussed above, court orders reinstating removed executive officers raise grave separation-of-powers concerns. See pp. 21-23, *supra*. And this Court has often granted certiorari to resolve important questions concerning the extent of the lower courts’ remedial authority. See, e.g., *Garland v. Aleman Gonzalez*, 596 U.S. 543, 548 (2022); *Monsanto Co. v. Geertson Seed Farms*, 561 U.S. 139, 149 (2010); *Nken v. Holder*, 556 U.S. 418, 423 (2009); *Winter v. Natural Resources Defense Council, Inc.*, 555 U.S. 7, 20 (2008).

In addition, the “interim status” of the removals—that is, whether respondents may continue to exercise executive power “while the parties wait for a final merits ruling”—“*itself* raises a separate question of extraordinary significance.” *Labrador v. Poe*, 144 S. Ct. 921, 929 (2024) (Kavanaugh, J., concurring). Since the beginning of this Administration, multiple executive officers removed by the President—an NLRB member, an MSPB member, a member of the FLRA, two FTC members, and inspectors general across multiple agencies—have challenged their removal in court. See *Grundmann v. Trump*, No. 25-cv-425, 2025 WL 782665 (D.D.C. Mar. 12, 2025); *Slaughter v. Trump*, No. 25-cv-909 (D.D.C. filed Mar. 27, 2025); *Storch v. Hegseth*, No. 25-cv-415 (D.D.C.) (heard Mar. 27, 2025). The litigation in those cases in the district court, the court of appeals, and this Court may well last more than a year—*i.e.*, more than a quarter of the President’s four-year term. This Court, not the lower courts, should decide whether the President should be required to continue employing the removed officers in their offices during that period.

2. The district court’s restoration of respondents to office causes irreparable harm to the Executive Branch

The district court’s judgments cause extraordinary and irreparable harm to the President, in whom the Constitution vests “all of” “the ‘executive Power.’” *Seila Law*, 591 U.S. at 203 (quoting Art. II, § 1, Cl. 1). The district court is forcing the President to continue allowing respondents to exercise executive power as principal officers, even though the President has removed respondents. “That level of interference is virtually unheard of, and it impinges on the conclusive and preclusive power through which the President controls the Executive Branch that he is responsible for supervising.” App., *infra*, 47a-48a (Walker, J., concurring) (citation and quotation marks omitted). That sort of harm—to the Executive Branch, to the separation of powers, and to our democratic system—is manifestly irreparable.

That is not merely “an abstract constitutional injury”; “it is a serious, concrete harm.” App., *infra*, 68a (Walker, J., concurring). With Wilcox, the NLRB would have two Democratic members, one Republican member, and two vacancies. With Harris, the MSPB would have one Democratic member, one Republican member, and one vacancy. Compelling the President to work with an executive agency that is deadlocked or controlled by the opposing political party—especially during the critical early months of his administration—irreparably impairs his ability to implement his agenda. See *Seila Law*, 591 U.S. at 225 (recognizing the harm that a President suffers if he has “saddled with a holdover [officer] from a competing political party who is dead set against [his] agenda”) (emphasis omitted).

The President’s stated reasons for firing Wilcox underscore the irreparable harm caused by her reinstatement. The President has determined that the NLRB “is not presently fulfilling its responsibility to the American people,” that Wilcox has not

“been operating in a manner consistent with the objectives of [the] administration,” that she has “adopted a host of decisions that have improperly cabined employers’ rights to speak on the subject of unionization,” and that she has issued decisions that have “vastly exceeded the bounds” of the NLRA. *Wilcox* Compl. Ex. A, at 2-3. The President accordingly “lack[s] confidence” that Wilcox “can fairly evaluate matters before [her] without unduly disfavoring the interests of employers” and that she “will faithfully execute” the NLRA. *Id.* at 3. Compelling the President to entrust executive power to an officer in whom he has lost confidence plainly inflicts irreparable harm. “The moment [the President] loses confidence” in a principal executive officer, “he must have the power to remove him without delay.” *Myers*, 272 U.S. at 134.

So too, Harris’s conduct since her removal illustrates how her court-ordered reinstatement has irreparably harmed the Executive Branch. Earlier this year, Hampton Dellinger, a Special Counsel who had been removed by the President but reinstated by a district court, sought a stay of the firing of roughly 6000 employees at the Department of Agriculture. See App., *infra*, 68a (Walker, J., concurring). Harris, an MSPB member who had been fired by the President but reinstated by a district court, unilaterally granted the requested stay. See Order on Stay Request at 2, *Special Counsel ex rel. John Doe v. Department of Agriculture*, No CB-1208-25-20-U-1 (MSPB Mar. 5, 2025). Although the Department of Agriculture “filed an opposition to the stay request,” Harris “d[id] not consider these additional submissions” because she believed that the applicable statute “does not provide an opportunity for agency comment on an initial stay request.” *Id.* at 2 n.3. In other words, a fired MSPB member and a fired Special Counsel together undid the firing of thousands of federal employees, all without giving the affected executive agency an opportunity even to comment. As that episode illustrates, court-ordered reinstatement of fired executive

officers can enable those officers to thwart the elected President’s agenda from within the Executive Branch.

The district court’s judgments also threaten irreparable harm to the NLRB and MSPB. In *Collins*, this Court recognized that private persons may be entitled to judicial relief when an unconstitutional removal restriction “inflict[s] compensable harm.” 594 U.S. at 259. For instance, if “the President had attempted to remove [an agency head] but was prevented from doing so by a lower court decision,” the removal restriction “would clearly cause harm” to affected persons. *Ibid.* By blocking the President’s removal of NLRB and MSPB members, the district court has arguably exposed every action by those agencies to legal challenge. The prospect of mass invalidation of everything done by the NLRB and MSPB during respondents’ court-ordered tenures provide a further reason to grant immediate relief.

3. The balance of equities favors a stay

Staying the district court’s judgments would not cause any irreparable harm to respondents. Although respondents’ removal deprives them of their employment and salary, such harms ordinarily are not considered *irreparable*, “however severely they may affect a particular individual.” *Sampson*, 415 U.S. at 92 n.68. A court can redress such harms by awarding back pay at the end of the case.

The district court found that respondents’ firings irreparably harmed them by depriving Wilcox of her ability “to carry out [her] congressional mandate in protecting labor rights,” App., *infra*, 170a, and Harris of her ability “to pursue her ‘statutory mission’ to protect employees,” *id.* at 209a (citation omitted). That reasoning is unsound. Although a public official’s “loss of salary” amounts to a judicially cognizable harm, his “loss of political power” does not. *Raines*, 521 U.S. at 820. The notion that public officials “have a separate private right, akin to a property interest, in the pow-

ers of their offices” is “alien to the concept of a republican form of government.” *Barnes v. Kline*, 759 F.2d 21, 50 (D.C. Cir. 1984) (Bork, J., dissenting). At bottom, respondents’ claim to irreparable injury from their inability to continue wielding executive power is precisely the problem. Executive power belongs to the President, not to respondents.

Judge Millett also emphasized that Wilcox’s and Harris’s firings deprive the NLRB and MSPB of quorums. See App., *infra*, 131a. But that harm is not irreparable. For example, the President and Senate can address it by nominating and confirming new members. The President also could properly conclude that it is better to leave the NLRB or MSPB temporarily without a quorum than to entrust executive power to officers in whom he lacks confidence. And if this Court ultimately concludes that respondents’ firings were lawful, actions taken by the agencies in the meantime might need to be unwound anyway. See p. 35, *supra*. In sum, the irreparable harm caused by the district court’s judgments “far outweighs any harm to Harris and Wilcox from a stay.” App., *infra*, 78a (Henderson, J., concurring).

C. This Court Should Grant Certiorari Before Judgment

Regardless of whether this Court grants a stay, it should construe this application as a petition for a writ of certiorari before judgment and grant review of the following questions: (1) whether 29 U.S.C. 153(a) violates the separation of powers by prohibiting the President from removing a member of the National Labor Relations Board except for “neglect of duty or malfeasance in office”; (2) whether 5 U.S.C. 1202(d) violates the separation of powers by prohibiting the President from removing a member of the Merit Systems Protection Board except for “inefficiency, neglect of duty, or malfeasance in office”; and (3) whether the district court’s orders restoring respondents to office exceeded the court’s remedial authority.

These cases satisfy the demanding criteria for certiorari before judgment: They are “of such imperative public importance as to justify deviation from normal appellate practice and to require immediate determination in this Court.” Sup. Ct. R. 11. As discussed above, members of four multimember agencies—the NLRB, MSPB, FLRA, and FTC—have brought suits in federal district court challenging their removals and seeking reinstatement to office. See p. 32, *supra*. No matter which party prevails in the lower courts, this Court would likely ultimately grant review. But until the Court issues a final decision, the agencies will operate under a cloud of legal uncertainty and will risk legal challenges to any actions that they take. See p. 35, *supra*. The President, the agencies, and the public thus all have a strong interest in obtaining, as speedily as possible, a definitive judicial resolution of the dispute.

On the other side of the ledger, there would be little benefit to postponing this Court’s review until after the D.C. Circuit issues its final decision. The district court in each case has already issued an opinion resolving the merits; the D.C. Circuit stay-panel members have issued three separate opinions spanning 114 pages; Judge Rao issued a further opinion at the en banc stage exploring the remedial issue; and the en banc D.C. Circuit has already signaled that it will rule in respondents’ favor. On top of all that, the scope of the President’s removal power is a fundamental question of constitutional law that has been thoroughly discussed in this Court, in the lower courts, and in the academy. Because the harms of further delay so plainly outweigh the benefits, the Court should grant certiorari before judgment.

Especially if this Court does not grant this stay application, it should also order expedited briefing and hold oral argument in a special May sitting this Term. If the Court instead defers a decision until next Term, the NLRB, MSPB, FLRA, and FTC might all remain under a legal cloud until 2026, and the President might be forced to

continue entrusting executive power to fired officers for more than a quarter of his four-year term. We acknowledge the concerns surrounding litigating and deciding the important questions raised by these cases on such a short timeline, see pp. 27-28, *supra*, but respondents’ decision to seek (and the district court’s decisions to grant) reinstatement rather than back pay leaves no workable alternative. As Judge Henderson correctly observed, “[o]nly [this] Court can decide the dispute,” and “the sooner” it does so, “the better.” App., *infra*, 5a.

D. This Court Should Issue An Administrative Stay While It Considers This Application

The government respectfully requests an administrative stay of the district court’s judgments while it considers this application. The government “will suffer irreparable harm each day the President is deprived of the ability to control the executive branch.” App., *infra*, 25a (Walker, J., concurring). Experience shows that a fired principal executive officer can wreak significant damage on the President’s authority if allowed to remain in office for even a few days. See p. 34, *supra* (discussing how fired MSPB member Harris and fired Special Counsel Dellinger undid the firings of thousands of other federal employees). And the longer respondents continue to exercise executive power over the President’s objection, the greater the number of NLRB and MSPB actions that would be vulnerable to legal challenge once this Court confirms the lawfulness of respondents’ removal.

Five members of the en banc D.C. Circuit—Chief Judge Srinivasan and the four dissenters—would have granted the government an administrative stay. See App., *infra*, 3a-4a n.*-** (noting that Chief Judge Srinivasan and the four dissenters would have granted an administrative stay). An administrative stay would enable this Court to consider this important application in an orderly manner. An adminis-

trative stay of the district court's unprecedented judgments also is warranted in light of "the high respect that is owed to the office of the Chief Executive," "a matter that should inform the conduct of the entire proceeding." *Cheney*, 542 U.S. at 385 (brackets, citation, and ellipsis omitted).

CONCLUSION

In both *Wilcox* and *Harris*, this Court should stay the judgment of the U.S. District Court for the District of Columbia pending the resolution of the government's appeal to the U.S. Court of Appeals for the D.C. Circuit and pending any proceedings in this Court. The Court should also construe this application as a petition for a writ of certiorari before judgment and grant the petition. Finally, the Solicitor General respectfully requests an administrative stay of the district court's judgments pending the Court's consideration of this application.

Respectfully submitted.

D. JOHN SAUER
Solicitor General

APRIL 2025

APPENDIX

Wilcox v. Trump and Harris v. Bessent (D.C. Cir.)

En banc court order reconsidering stay (Apr. 7, 2025)	1a
Henderson, J., dissenting	5a
Rao, J., dissenting	6a
Walker, J., dissenting	17a
Order denying initial hearing en banc (Apr. 7, 2025)	19a
Panel order denying administrative stay (Mar. 30, 2025)	21a
Panel order granting stay pending appeal (Mar. 28, 2025)	23a
Walker, J., concurring	25a
Henderson, J., concurring	73a
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Wilcox v. Trump (D.D.C.)

Order denying stay pending appeal (Mar. 8, 2025)	137a
Memorandum opinion granting final judgment (Mar. 6, 2025)	141a
Order granting final judgment (Mar. 6, 2025)	177a

Harris v. Bessent (D.D.C.)

Order denying stay pending appeal (Mar. 5, 2025)	179a
Memorandum opinion granting final judgment (Mar. 4, 2025)	181a
Order granting final judgment (Mar. 4, 2025)	216a
Memorandum opinion granting temporary restraining order (Feb. 18, 2025)	218a
Order granting temporary restraining order (Feb. 18, 2025)	239a